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Case Number: 24NWCV04346 Hearing Date: August 12, 2026 Dept: D

AALIYAH AGUILAR V. DOWNEY

UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO.: 24NWCV04346

HEARING: 08/12/2026 @ 9:30 a.m.

#14

TENTATIVE ORDER

Based on the foregoing,

Plaintiff Aaliyah Aguilar's motion to compel deposition answers and production of documents is GRANTED IN PART.

The parties are ORDERED to meet and confer regarding the terms of a protective order. The parties shall submit a stipulated protective order for the Court's approval within five court days. If the parties are unable to agree, they shall submit their respective proposed protective orders for the Court's consideration.

Moving party to give notice.

Plaintiff Aaliyah Aguilar, by and through her Guardian ad Litem, Adriana Torres, (Plaintiff) moves this Court for an order compelling Leslie Patterson (Patterson) to answer deposition questions and produce documents, (1) at a resumed deposition session, or (2) via written deposition questions under Code of Civil Procedure section 2028.010 et seq. Plaintiff further requests that the Court

order Patterson to produce all documents responsive to Request for Production No. 11.

Background

On November 12, 2024, Plaintiff filed the operative Complaint against Defendant Downey Unified School District (DUSD), City of Downey, County of Los Angeles, and Does 1 to 100, inclusive, asserting two causes of action: (1) Negligent Hiring, Retention, and Supervision; and (2) Negligence. Plaintiff alleges that on December 12, 2023, while she was a student in Dance 1, Period 1, at Downey High School, a school operated by DUSD, she sustained an ankle fracture.

On April 8, 2026, Plaintiff served a Notice of Taking Deposition of Party Affiliated Witness Patterson with Request for Production of Document.

At Patterson's April 21, 2026 deposition, Plaintiff asked Patterson to identify the student teaching assistant assigned to Dance 1, Period 1 on the date of the incident. DUSD's counsel instructed Patterson not to answer, relying on the California Education Code. Counsel similarly instructed Patterson not to confirm whether the aide's first name was "Priscilla" or identify the aide's gender.

On June 1, 2026, Plaintiff filed the instant motion.

On July 30, 2026, DUSD filed an opposition.

On August 5, 2026, Plaintiff filed a reply.

Legal Standard

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court

for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480(a.)

A motion to compel answers at deposition “shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.” (Id., subd. (b).)

To prevail, a party moving for an order compelling further responses to deposition questions must make “a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448 [analogous rule for document production].) If “good cause” is shown by the moving party, the burden shifts to the responding party to justify any objections made. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [analogous rule for document production].)

Meet and Confer

Plaintiff’s counsel submits a declaration establishing they met and conferred with Defendant’s counsel before filing the instant motion. (Hosseini Decl., ¶¶ 7-9, Ex. C.) Section 2016.040 is satisfied.

Summary of Arguments

Plaintiff seeks to compel Patterson, the Dance 1 teacher, to answer deposition questions identifying a student teaching assistant and to produce documents relating to that student aide. Plaintiff argues that DUSD’s counsel’s instructions that Patterson not answer Plaintiff’s counsel’s questions were improper on the grounds that (1) the Education Code and the Family Educational Rights and Privacy Act (FERPA) do not prevent court-ordered disclosure; (2) the student aide has only a diminished privacy interest in her identity and contact information; and (3) any constitutional privacy objection was waived and fails on the merits.

In opposition, DUSD argues that defense counsel properly instructed Patterson not to answer questions identifying the student teaching assistant because the requested information is

protected by FERPA, the Education Code, and the California constitutional right to privacy. DUSD further argues that Plaintiff proceeded with Patterson's deposition without first obtaining a court order authorizing disclosure of the student's information and therefore has not shown good cause to require Patterson to appear for a second deposition.

In reply, Plaintiff argues that DUSD's reliance on FERPA and the Education Code is misplaced because both expressly permit disclosure pursuant to a judicial order, and the instant motion is the procedural mechanism for obtaining such an order. Plaintiff also argues that DUSD waived any constitutional privacy objection by failing to assert it at the deposition and that, in any event, a protective order adequately addresses any legitimate privacy concerns.

Analysis

Student

Privacy and Disclosure

The parties' dispute principally concerns whether Patterson could properly be instructed not to answer questions identifying the student teaching assistant based on federal and state student-privacy protections. Because the same privacy objection applies to each disputed deposition question and Request for Production No. 11, the Court addresses that issue first.

FERPA conditions federal funding on an educational agency or institution refraining from maintaining a policy or practice of releasing education records, or personally identifiable information contained therein, without parental consent. (20 U.S.C. § 1232g.) "Education records" are broadly defined as records, files, documents, and other materials that contain information directly related to a student and are maintained by an educational agency or institution or a person acting for such agency or institution. (20 U.S.C. § 1232g(a)(4)(A).)

FERPA separately defines "directory information" to include a student's name, address, and telephone listing, among other information. (20 U.S.C. § 1232g(a)(5)(A).)

FERPA does not create an

evidentiary privilege barring disclosure of student records in civil discovery.

(See *Ragusa v. Malverne Union Free*

School Dist. (E.D.N.Y. 2008) 549 F.Supp.2d 288, 291–293.) FERPA's implementing regulations permit disclosure of directory information under specified circumstances and also permit disclosure of otherwise protected information pursuant to a judicial order. (34 C.F.R. §§ 99.31(a)(9), (11), 99.37.)

Here, DUSD's reliance on FERPA

and the Education Code does not establish that either the student aide's identifying information or responsive student records are categorically immune from discovery. Although those statutes protect student information and records from unauthorized disclosure, they contemplate disclosure pursuant to judicial order. Accordingly, the Court must separately determine whether the deposition testimony and documents sought are discoverable and whether any disclosure should be limited by appropriate privacy protections.

Relevance/Need
for Information

Plaintiff contends the aide is particularly important because Patterson testified that she did not witness Plaintiff's fall and that the student aide was the only person who recalled witnessing the incident.

In opposition, DUSD argues that Plaintiff's showing that the student aide witnessed the incident establishes only relevance, which is insufficient to overcome the student's privacy rights, particularly because Plaintiff herself can testify regarding the circumstances of her fall.

In her reply, Plaintiff disputes DUSD's contention that the aide's testimony is unnecessary because Plaintiff can testify regarding her own fall, arguing that the aide is the sole known independent percipient witness and may provide evidence concerning liability, causation, and comparative fault.

The Court finds that Plaintiff has shown the information is relevant. Patterson testified that she did not witness

the incident and that the student aide was the only person she knew to have recollection of Plaintiff's fall. (Patterson Depo., 57:2-22; 58:1-6.) Thus, the aide is a percipient witness to the incident giving rise to Plaintiff's claims. The fact that Plaintiff can also testify about the fall does not make the aide's testimony irrelevant.

Constitutional

Privacy

Relying on *Hill v. National*

Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35, DUSD contends that the student has a reasonable expectation of privacy in her identifying information and that Plaintiff has not demonstrated a sufficiently important countervailing interest to outweigh that privacy interest.

In response, Plaintiff argues

that DUSD misapplies the privacy balancing test because it has not established that disclosure of the student aide's basic identifying information would constitute a serious invasion of privacy. Plaintiff contends that there is "a vital public interest in 'facilitating the ascertainment of truth in connection with legal proceedings.'" (Citing *Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 316.)

The Court does not find that the

student has no privacy interest merely because her name and contact information may constitute directory information. However,

the information sought is limited to basic identifying information concerning a percipient witness, rather than grades, disciplinary records, medical information, or other sensitive educational material. Moreover, the student aide is the only known percipient witness to the accident. On balance,

Plaintiff's need to identify and obtain testimony from that witness outweighs the student's privacy interest in keeping her identity confidential, particularly where disclosure may be subject to a protective order.

Accordingly, DUSD's privacy

objection does not warrant withholding the student aide's identifying information.

Deposition Question No. 1

MR. HOSSEINI: What was their

name?

OBJECTION: I'm going to have to object to that as well since -- Education Code. She was a student, so she can't disclose that. So I'm going to instruct Ms. Patterson not to answer.

(Patterson Depo., 31:10-14.)

Here, Question No. 1 seeks the name of the student teaching assistant assigned to Patterson's Dance 1 class at the time of the incident. As discussed above, Patterson testified that the student aide was the only person she knew to have recollection of witnessing Plaintiff's fall. The aide's identity is therefore directly relevant to the claims and defenses in this action. Although the student has a privacy interest in her identifying information, that interest does not outweigh Plaintiff's need to identify the sole known percipient witness, particularly where disclosure may be limited by protective order.

Accordingly, the motion is GRANTED as to Deposition Question No. 1.

Deposition Question No. 2

MR. HOSSEINI: Was the student — I have disclosed to me someone named Priscilla. I don't have a last name. But was Priscilla who you recall being the student aide?

OBJECTION: I'm going to object as well that she can't confirm who the student was. So please don't answer that as well.

Here, Question No. 2 similarly seeks to identify the student aide by asking Patterson to confirm whether the individual Plaintiff knew as "Priscilla" was the aide assigned to the class. For the same reasons discussed above, the information is discoverable.

Accordingly, the motion is GRANTED as to Deposition Question No. 2.

Deposition Question No. 3

MR. HOSSEINI: Would you be able
to tell me if the student aide was a boy or a girl?

OBJECTION: I'm also going to
object. No identifiable information
about the student per the Ed Code unless Court intervention is involved.

Here, Question No. 3 seeks only
whether the student aide was male or female.
DUSD does not identify any authority establishing that this information,
standing alone, constitutes a protected pupil record or otherwise warrants
protection from discovery.

Accordingly, the motion is
GRANTED as to Deposition Question No. 3.

Request for Production No. 11

"All DOCUMENTS reflecting the
identities, roles, duties, schedules, and assignments of any student teacher
assistants, student aides, or teaching assistants assigned to or participating
in the DANCE CLASS, during the 2023-2024 school year."

Although Plaintiff establishes
good cause for discovery sufficient to identify and locate the student aide,
Request No. 11 extends more broadly to all student aides who participated in
the Dance 1 class throughout the entire 2023–2024 school year, as well as
documents concerning their roles, duties, schedules, and assignments. Plaintiff's showing concerning the sole
percipient witness does not establish good cause for disclosure of records
pertaining to unrelated student aides or periods unrelated to the incident.

Accordingly, the Court limits Request
No. 11 to documents sufficient to identify the student teaching assistant
assigned to Dance 1, Period 1 on December 12, 2023, and reflecting that aide's
assignment to the class on that date.

Conclusion

Based on the foregoing, Plaintiff

Aaliyah Aguilar's motion to compel deposition answers and production of documents is GRANTED IN PART.

The motion is GRANTED as to
Deposition Questions Nos. 1 through 3.

The motion is GRANTED IN PART as
to Request for Production No. 11, as limited by the Court's ruling above.

The parties are ORDERED to meet
and confer regarding the terms of a protective order governing the student aide's identifying information and any documents produced pursuant to this ruling. The parties shall submit a
stipulated protective order for the Court's approval within five court days. If the parties are unable to agree, they shall
submit their respective proposed protective orders for the Court's
consideration.

After entry of the protective
order, Patterson shall serve verified answers to the written deposition
questions pursuant to Code of Civil Procedure section 2028.010 et seq., and
DUSD shall produce the documents ordered produced in response to Request for
Production No. 11.